

FEDERAL MARITIME COMMISSION

MAC INDUSTRIES INC. DBA MAC CONTAINER LINE,
Complainant

v.

COSCO SHIPPING LINES CO., LTD.,
COSCO SHIPPING LINES (NORTH AMERICA) INC., AND
COSCO SHIPPING LINES (INDIA) PRIVATE, *Respondents*.

DOCKET NO. 25-29

Served: July 16, 2026

NOTICE OF FILING OF AMENDED COMPLAINT AND ASSIGNMENT

Notice is given that an amended complaint has been filed with the Federal Maritime Commission (the “Commission”) by MAC Industries Inc. dba MAC Container Line (the “Complainant”) against COSCO Shipping Lines Co., Ltd. (COSCO), COSCO Shipping Lines (North America) Inc., and COSCO Shipping Lines (India) Private (the “Respondents”). Complainant states that the Commission has jurisdiction over the complaint pursuant to the Shipping Act of 1984, as amended, 46 U.S.C. § 40101 *et seq.*, and over Respondent COSCO as a “common carrier” and a vessel operating “ocean common carrier” and over COSCO Shipping Lines (North America) Inc. and COSCO Shipping Lines (India) Private as general agents of COSCO.

Complainant is a non-vessel-operating common carrier headquartered in San Clemente, California.

Complainant identifies Respondent COSCO as a global ocean carrier with its corporate office in Shanghai, China, conducting business in the United States through its general agent,

Respondent COSCO Shipping Lines (North America) Inc., a company existing under the laws of Delaware with its principal place of business in Secaucus, New Jersey, and conducting business in India through Respondent COSCO Shipping Lines (India) Private, with a principal corporate office in Mumbai, India.

Complainant alleges that Respondents violated 46 U.S.C. §§ 41102(b)(2), 41102(c), 41102(d), and 41104(a)(2)(A), (a)(3), (a)(4)(C), (a)(4)(E), (a)(8), (a)(9), (a)(10), (a)(14) and (a)(15). Complainant alleges these violations arose from Respondents' unreasonable assessment of detention charges even after Respondents had taken control of the equipment in dispute, retaliatory actions against Complainant by way of refusing to accept future bookings, threatening to cancel and then canceling service contracts, and other acts or omissions by Respondents.

An answer to the amended complaint must be filed with the Commission within 25 days after the date of service.

The full text of the amended complaint can be found in the Commission's electronic Reading Room at <https://www2.fmc.gov/readingroom/proceeding/25-29/>. This proceeding has been assigned to the Office of Administrative Law Judges. The initial decision of the presiding judge shall be issued by December 22, 2026, and the final decision of the Commission shall be issued by July 6, 2027.

David Eng
Secretary